

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #8	CCRB Case #: 201707222	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/29/2017 1:00 AM, Sunday, 09/03/2017, Tuesday, 10/10/2017	Location of Incident: In the rear of and inside § 87(2)(b)	Precinct: 47	18 Mo. SOL 11/29/2018	EO SOL 11/29/2018	
Date/Time CV Reported Tue, 09/05/2017 8:45 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/05/2017 8:45 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			047 PCT
2. LT Michael Kaiser	00000	941046	047 PCT
3. LT Matthew Johnson	00000	940313	PBBX
4. POM Anthony Hyde	8392	954954	047 PCT
5. POF Alejandra Perez	16453	956158	047 PCT
6. POM Brian Hanlon	05831	950459	PBBX
7. POM Matthew Escudero	26192	948333	047 PCT
8. POM Matthew Palmerini	10321	942320	047 PCT
9. POM Michael Barbetto	6815	954519	047 PCT
10. LT Paul Gaglio	00000	900141	PBBX
11. Officers			047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Gonzalez	24102	943312	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Abuse: On May 29, 2017, an officer threatened to arrest § 87(2)(b)	
B. LT Michael Kaiser	Abuse: On September 3, 2017, Lieutenant Michael Kaiser entered the rear of § 87(2)(b) in the Bronx.	
C. LT Michael Kaiser	Abuse: On September 3, 2017, Lieutenant Michael Kaiser entered § 87(2)(b) in the Bronx.	
D. LT Michael Kaiser	Abuse: On September 3, 2017, Lieutenant Michael Kaiser supervised the search of § 87(2)(b) in the Bronx.	
E. Officers	Abuse: Officers seized § 87(2)(b)'s property.	

Officer(s)	Allegation	Investigator Recommendation
F. Officers	Abuse: Officers seized § 87(2)(b) s property.	
G.POM Anthony Hyde	Abuse: On September 3, 2017, Police Officer Anthony Hyde searched § 87(2)(b) purse.	
H.POM Matthew Escudero	Abuse: On September 3, 2017, Police Officer Matthew Escudero searched § 87(2)(b) purse.	
I.POM Matthew Palmerini	Abuse: On September 3, 2017, Police Officer Matthew Palmerini searched § 87(2)(b) purse.	
J.POF Alejandra Perez	Abuse: On September 3, 2017, Police Officer Alejandra Perez searched § 87(2)(b) purse.	
K.POF Alejandra Perez	Abuse: On September 3, 2017, Police Officer Alejandra Perez frisked § 87(2)(b)	
L.POF Alejandra Perez	Abuse: On September 3, 2017, Police Officer Alejandra Perez searched § 87(2)(b) s purse.	
M.POM Michael Barbetto	Abuse: On September 3, 2017, Police Officer Michael Barbetto searched § 87(2)(b) s purse.	
N.POM Matthew Escudero	Abuse: On September 3, 2017, Police Officer Matthew Escudero searched § 87(2)(b) s purse.	
O.POM Brian Hanlon	Abuse: On September 3, 2017, Police Officer Brian Hanlon searched an individual's backpack.	
P.POM Matthew Palmerini	Abuse: On September 3, 2017, Police Officer Matthew Palmerini searched § 87(2)(b) s purse.	
Q.POM Matthew Palmerini	Abuse: On September 3, 2017, Police Officer Matthew Palmerini searched an individual's backpack.	
R.POM Matthew Escudero	Abuse: On September 3, 2017, Police Officer Matthew Escudero frisked § 87(2)(b)	
S.POM Matthew Escudero	Abuse: On September 3, 2017, Police Officer Matthew Escudero searched § 87(2)(b)	
T.POM Matthew Escudero	Abuse: On September 3, 2017, Police Officer Matthew Escudero seized § 87(2)(b) s property.	
§ 87(2)(g), § 87(4-b)		
W.LT Matthew Johnson	Abuse: On October 10, 2017, Lieutenant Matthew Johnson entered inside and the rear of § 87(2)(b) in the Bronx.	
X.LT Paul Gaglio	Abuse: On October 10, 2017, Lieutenant Paul Gaglio entered inside and the rear of § 87(2)(b) in the Bronx.	
Y.LT Matthew Johnson	Abuse: On October 10, 2017, Lieutenant Matthew Johnson searched § 87(2)(b) in the Bronx.	
Z.LT Paul Gaglio	Abuse: On October 10, 2017, Lieutenant Paul Gaglio searched § 87(2)(b) in the Bronx.	

Case Summary

On September 5, 2017, § 87(2)(b) filed this complaint on behalf of himself, his wife § 87(2)(b) § 87(2)(b) § 87(2)(b) as well as § 87(2)(b) with the CCRB over the telephone.

On May 29, 2017, at approximately 1:00 a.m., an unidentified officer threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority**, § 87(2)(b)).

Video footage of this incident was not recovered.

On September 3, 2017, at approximately 11:40 p.m., Lt. Michael Kaiser of the 47th Precinct along with PO Anthony Hyde, PO Alejandra Perez, PO Matthew Escudero, PO Michael Gonzalez, PO Matthew Palmerini, PO Michael Barbetto, and PO Brian Hanlon of the same command entered the rear lot of § 87(2)(b) and § 87(2)(b) located at the same address in the Bronx (**Allegations B and C: Abuse of Authority**, § 87(2)(g)). Lt. Kaiser supervised the search of § 87(2)(b) and officers seized alcohol found inside (**Allegation D, E, and F: Abuse of Authority**, § 87(2)(g)). PO Hyde, PO Escudero, PO Palmerini, and PO Perez searched § 87(2)(b) purse located on the table inside the restaurant office and PO Perez frisked § 87(2)(b) (**Allegations G, H, I, J and K: Abuse of Authority**, § 87(2)(g)). PO Perez, PO Barbetto, PO Escudero, PO Hanlon, and PO Palmerini searched § 87(2)(b)'s purse and § 87(2)(b)'s backpack (**Allegations L, M, N, O, P, and Q: Abuse of Authority**, § 87(2)(g)). PO Escudero frisked and searched § 87(2)(b) and seized his backpack (**Allegations R, S, and T: Abuse of Authority**, § 87(2)(g), § 87(2)(g), § 87(4-b)).

§ 87(2)(b) provided 21 clips of video recorded during the incident by the surveillance cameras installed inside the restaurant and in the alleyway leading to the backyard [See *original video* BR 64].

On October 10, 2017, at approximately 8:30 p.m., Lt. Matthew Johnson of Patrol Borough Bronx, Lt. Paul Gaglio of Bronx Vice at the time, another unidentified officer of the same command, along with attorneys Todd Goldebrg and Tony Anisone from NYPD Legal Bureau entered § 87(2)(b). Lt. Johnson, Lt. Gaglio and another officer entered private areas of the restaurant and searched it (**Allegations W, X, Y, and Z: Abuse of Authority**, § 87(2)(g)).

Video footage of this incident was not recovered.

Findings and Recommendations

Allegation (A) Abuse of Authority: On May 29, 2017, an officer threatened to arrest § 87(2)(b)

During his in-person testimony at the CCRB, § 87(2)(b) stated he is the manager of § 87(2)(b) located at § 87(2)(b) in the Bronx, which was bought for him by his mother-in-law § 87(2)(b) [BR 02]. On § 87(2)(b), he applied for a liquor license. He, along with other business owners in the plaza occasionally have parties in its backyard. On May 28, 2017, sometime in the afternoon, a female whom § 87(2)(b) did not know was having a party in the backyard of the location. At approximately 9:00 p.m., multiple uniformed officers arrived at the party, instructed the female to “tone it down,” and left. On May 29, 2017, at approximately

1:00 a.m., other unidentified uniformed officers responded to the party again. One of the officers, described as a white male, 6'9" tall, 250 pounds with dark brown hair and in his 40s, told § 87(2)(b) to find the female responsible for the party otherwise he would be arrested because he was selling food and liquor there. An officer who was involved in a subsequent incident on September 3, 2017 was also at the location. He was described as a Hispanic male, 5'4" tall, heavy set with a stomach, in his 30s, wearing plain clothes. Officers did not issue any summonses or make any arrests and left. § 87(2)(b) did not make this allegation in his telephone statement to the CCRB.

§ 87(2)(b) did not witness the incident and § 87(2)(b) had no recollection of it [BR 05, 06].

NYPD BADS database search did not reveal any arrests made at the location on that day [NYPD 39]. No NYPD Events or criminal court summonses were generated at the address either [NYPD 39].

47th Precinct Tour 1 Roll Call for May 29, 2017 revealed 25 white and Hispanic officers on duty [NYPD 11]. Based on NYPD records, the incident occurred on the border of sectors C and D. According to the Roll Call, PO Miguel Soares and PO Joseph Feger were assigned to sector C; PO Garcia Vinico and PO Nelson Mena were assigned to sector D1; PO Joseph Rowe and PO Carlos Garcia were assigned to sector D2. Based on NYPD records listed in IA177, PO Soares was determined to be the only officer who fits the description of the subject officer. MOS photo terminal also revealed PO Geary (first name unknown) and PO Jorge Santiago as two other officers who fit § 87(2)(b) description and were working on that day.

In their testimony to the CCRB, both PO Soares and PO Santiago stated they were not present at the incident location although they did not recall where they were at the time [BR 34, 35]. They were not familiar with § 87(2)(b) and denied committing the allegation. Both officers denied their involvement in the incident on September 3, 2017.

According to PO Geary's memo book entries, he did not visit the incident location on that day [NYPD 14].

§ 87(2)(g)

Allegation (B) Abuse of Authority: On September 3, 2017, Lieutenant Michael Kaiser entered the rear of § 87(2)(b) in the Bronx.

Allegation (C) Abuse of Authority: On September 3, 2017, Lieutenant Michael Kaiser entered § 87(2)(b) in the Bronx.

The following facts are undisputed: on the day of the incident there was a large social gathering of more than 20-30 people in the backyard of the location. Alcohol was being consumed and tables, sound and light systems were set up. There were security guards stationed in the alleyway entrance leading to the lot who were frisking people entering the party and selling tickets. It is undisputed that Lt. Johnson along with the rest of the officers mentioned above entered the rear of and inside of § 87(2)(b) in the Bronx on September 3, 2017. Their actions were captured by commercial surveillance cameras [BR 12, 13, 22, 23].

When interviewed at the CCRB, § 87(2)(b) stated that § 87(2)(b) asked him if he could hold an event in regards to someone's funeral in the backyard of the restaurant [BR 02].

Approximately 50-60 people gathered and were consuming Hennessey, Ciroc, Moscato wine, cranberry juice and other beverages brought by § 87(2)(b). § 87(2)(b) did not believe that any alcohol was being sold. § 87(2)(b) was closed for business with its front doors and gate shut down. However, the back door of the restaurant was open and § 87(2)(b) was coming in and out to mingle with people and give out his business cards. He only had one drink of Hennessey and cranberry juice. § 87(2)(b) and their electrician § 87(2)(b) were sitting in the kitchen of the restaurant by the back door and § 87(2)(b) was drinking from a \$7 bottle of Jamaican rum that § 87(2)(b) had bought for her in a liquor store. § 87(2)(b) and her friend, known as § 87(2)(b) were sitting inside the dining area of the restaurant and not consuming alcohol. Eventually, officers entered the backyard and approximately eight of them entered the restaurant through the back door. § 87(2)(b) was consistent in his preceding statements to the CCRB in regards to these allegations [BR 01].

§ 87(2)(g)
§ 87(2)(b) stated she did not see if any alcohol was being sold at the party and was unaware if her husband was drinking there since she did not see him with a cup [BR 05]. § 87(2)(b) explained that at some point, the screen door was pushed in and a few officers entered the kitchen without announcing themselves or asking for permission to enter. § 87(2)(b) testified she had no knowledge of who was responsible for the party but stated it was neither § 87(2)(b) nor § 87(2)(b) [BR 06]. § 87(2)(b) denied consuming alcohol inside but stated she had a small bottle of Bailey's in her purse that she had bought a few days earlier at a liquor store.

In his unverified phone statement to the CCRB, § 87(2)(b) stated he was having a Labor Day barbeque for his family and friends in the backyard of the location [BR 09]. § 87(2)(b) allowed him to use the backyard provided he cleaned after the party and paid him for the electricity he used up. Approximately 80 to 90 people gathered and no part of the gathering was set up inside the restaurant. § 87(2)(b) together with his friends and relatives coordinated efforts and all brought liquor (Hennessey, Moscato and beer) but none was sold by him, his guests or § 87(2)(b) and § 87(2)(b) was uncooperative with investigation and did not provide a verified statement [BR 43, *See detailed IA 412*].

In his unverified phone statement, § 87(2)(b) stated that he was unaware of what kind of gathering was taking place in the backyard but acknowledged that he was also drinking some champagne that he got from the event for free [BR 11]. However, he was unaware if any alcohol was being sold. He described the same circumstances of entry as § 87(2)(b). § 87(2)(b) was also uncooperative with the investigation and did not provide a verified statement [BR 43, *See detailed IA 412*].

Since no further information was provided for § 87(2)(b) the investigation was unable to establish his identity and contact information.

In his statement to the CCRB, Lt. Kaiser noted that § 87(2)(b) had been a known problematic location to the precinct due to unlicensed sales of alcohol at least from the beginning of the summer of 2017 [BR 33]. At some point prior to the incident, Lt. Kaiser learned about the pending status of the restaurant's liquor license from the Intelligence Bureau. On September 3, 2017, Lt. Kaiser also learned from the Intelligence Bureau that there was going to be a party at the location. He together with PO Gonzalez and PO Escudero conducted surveillance of the backyard from the roof of the residential building located directly behind for approximately 30 minutes. During the surveillance, Lt. Kaiser observed approximately 100 people at the location, cocktail tables, grills, and a DJ setup. He also saw a bar and a sale of drinks in exchange

for cash. Multiple people were coming in and out of the back entrance of § 87(2)(b) with what appeared to be drinks. Music was also playing and security guards were posted in the front. Following the surveillance, Lt. Kaiser gathered additional officers with whom he entered the backyard through an alleyway located between the restaurant and the adjacent building. Officers secured the back door of the restaurant and at some point, Lt. Kaiser entered inside to gain control of the area and to check how many people were inside. He observed three to six people in the kitchen and two to four individuals further into the establishment. Lt. Kaiser also believed that since the business was in the process of obtaining a liquor license, officers were permitted to enter and inspect its premises pursuant to the condition of the application for such license. § 87(2)(g)

In his testimony to the CCRB, PO Hyde stated that he responded to the location prior to the incident and was aware that it had no liquor license [BR 30]. He confirmed that he was summoned there by Lt. Kaiser and corroborated Lt. Kaiser's testimony about the scene in the rear of § 87(2)(b) prior to the officers' entry. PO Hyde testified that he might have stepped inside § 87(2)(b) for safety purposes and to ensure that no one was hiding inside. PO Hyde added that since the restaurant was never open before, he was curious why some people were exiting it.

§ 87(2)(g)

PO Escudero learned about the status of the restaurant's liquor license from Lt. Kaiser and was familiar with location's history personally. Both PO Escudero and PO Gonzalez stated they entered the restaurant after they received consent from § 87(2)(b) to search it. PO Escudero did not recall responding to the incident before September 3, 2018. PO Gonzalez was unable to tell if he observed people coming in and out of the restaurant with drinks or food.

The rest of the officers testified that they entered the restaurant after they received consent from § 87(2)(b) to search it [BR 38, 39, 40, 41].



2017-10-10_9-01-53.mp4

[BR 22]

Snagit of Video from IA144, Alleyway



2017-10-10_9-03-11.mp4

[BR 23]

Snagit of Video from IA145, Alleyway



2017-10-06_16-19-31.mp4

[BR 12]

Snagit of Video from IA134, Kitchen



2017-10-06_16-20-59.mp4

[BR 13]

Snagit of Video from IA135, Kitchen

Videos from Camera 13 located in the alleyway leading to the backyard show that the entrance was blocked by a barrier [BR 22, 23]. At 11:34:40 p.m., one individual is seen selling tickets to patrons entering the party and another is seen patting them down. Officers run into the backyard at 11:40:33 p.m. Based on the video recording from Camera 04 located in the kitchen,

Lt. Kaiser entered the restaurant through the kitchen at 11:40:50 p.m. [BR 12]. PO Hyde and PO Perez followed him at 11:41:06 and 11:41:13 p.m. PO Escudero enters the kitchen at 11:44:45 p.m., and PO Hanlon enters inside at 11:46:33 p.m. PO Barbetto enters the restaurant 11:53:49 p.m, after some of the officers had exited it, and PO Gonzalez enters inside at 11:55:25 p.m. The kitchen area captured by the camera was empty of any civilians at the time of the entry. Another video from the same camera shows that PO Palmerini entered the premises at 12:02:14 a.m. [BR 13].

§ 87(2)(b) was issued criminal court summons #§ 87(2)(b) for § 87(2)(a) 160.50 [NYPD 12]. The narrative in § 87(2)(b) arrest report #§ 87(2)(b), § 87(2)(b) is consistent with Lt. Kaiser's, PO Escuderos' and PO Gonzalez's description of the scene [NYPD 37].

According to People v. Mills, 159 A.D. 2d 520, Fourth Amendment protection only applies to areas where individuals have a reasonable expectation of privacy [BR 45]. All retail licensed premises shall be subject to inspection by law enforcement during the hours when the said premises are open for the transaction of business. New York State Alcoholic Beverage Control Law 106.15 [BR 56]. According to New York State Liquor Authority's (NYSLA) senior attorney Paul Karamanol, the NYSLA has the authority to inspect any business following its application for the liquor license and submit various inquiries about the business [See IA354 for details of the conversation that took place on April 13, 2017].

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] Lt. Kaiser and PO Escudero testified that they observed multiple people enter and leave the establishment during the surveillance, which was corroborated by PO Hyde and PO Hanlon. In addition, all civilians interviewed as well as § 87(2)(b) and § 87(2)(b) confirmed that the back door of the restaurant was unlocked, and § 87(2)(b) testified that the officers entered by pushing a screen door in. § 87(2)(b) also confirmed that he was coming in and out of the restaurant during the event in order to promote his business. Although no civilians are seen in the kitchen in the video evidence presented to the undersigned, it should be noted that all the clips were provided by § 87(2)(b) and covered the incident and only preceding minutes to it. Neither he nor § 87(2)(b) mentioned the fact that there were security guards and the party was for commercial purposes as opposed to a gathering of family and friends. § 87(2)(g)

[REDACTED]

Allegation (D) Abuse of Authority: On September 3, 2017, Lieutenant Michael Kaiser supervised the search of § 87(2)(b) in the Bronx.

Allegation (E) Abuse of Authority: Officers seized § 87(2)(b)'s property.

Allegation (F) Abuse of Authority: Officers seized § 87(2)(b)'s property.

It also undisputed that PO Hyde, PO Perez, PO Escudero, and PO Gonzalez either entered behind the bar counter or searched various locations inside the restaurant. § 87(2)(g)

§ 87(2)(b) stated that although he was not inside the restaurant at the time the officers entered, he observed several of them search the kitchen, bar, office and bathrooms via the surveillance system installed inside [BR 02]. § 87(2)(b) indicated that he had some bullets in a glass jar on the table that he had from a shooting range. He also believed that there was a one inch by one inch bag of marijuana in there. Approximately 10 minutes after the entry, PO Gonzalez came out and informed § 87(2)(b) that they found bullets and asked if the officers could go search for it. § 87(2)(b) replied that the officers had already been searching the place and inquired what PO Gonzalez wanted him to say. § 87(2)(g)

§ 87(2)(b) confirmed the allegation and indicated that there were four bottles of Moscato wine, a bottle of Meyer's rum and a bottle of white Jamaican rum stored in the office for personal consumption, which were seized [BR 05]. She did not hear the nature of § 87(2)(b) conversation with the officers.

§ 87(2)(b) added that normally some liquor is kept inside the restaurant because § 87(2)(b) and § 87(2)(b) like to stay inside after work, occasionally drink and invite friends [BR 06]. This liquor is for personal consumption only and it is normally stored in the office. § 87(2)(b) testified that she heard § 87(2)(b) talk to an officer about the bullets, during which he told the officer, "Ok, go search. You are free to go search."



2017-10-06_16-23-14.mp4

[BR 14]

Snagit of Video from IA136 Bar



2017-10-06_16-30-57.mp4

[BR 15]

Snagit of Video from IA137, Bar



2017-10-06_16-26-23.mp4

[BR 16]

Snagit of Video from IA138, Bar



2017-10-10_8-34-22.mp4

[BR 19]

Snagit of Video from IA141, Office



2017-10-10_8-35-41.mp4

[BR 20]



2017-10-10_8-47-53.mp4

[BR 21]

Snagit of Video from IA142, Office

Snagit of Video from IA143, Office



2017-10-10_8-21-08.mp4

[BR 17]

Snagit of Video from IA139, Bar



2017-10-10_8-40-06.mp4

[BR 18]

Snagit of Video from IA140, Bar

According to video evidence from Camera 05 located in the dining area, § 87(2)(b) pours himself a drink from a small bottle sitting on the bar counter [BR 14]. Another recording from the same camera shows PO Hyde entering behind the bar counter at 11:41:53 p.m. with a flashlight [BR 15]. A third recording from this camera shows PO Perez looking through some cardboard boxes at 11:51:06 p.m.; at 11:51:46 p.m. she enters the bar area and opens a cooler there [BR 16]. Video from Camera 07 located in the office depicts PO Hyde entering the office, opening the table drawer and quickly looking through it with his hand at 11:42:19 p.m. [BR 19]. At 11:45:05 pm, PO Escudero leans into the office and enters the now open drawer with his hand. He comes back at 11:46:06 p.m., and enters the drawer again. Although it seems that he picks up an object from the drawer and places it in the purse sitting on the table, he denied doing so during his interview. Another video from the office shows PO Escudero bringing Lt. Kaiser's attention to the office and pointing into the drawer at 11:50:44 p.m. [BR 20]. The lieutenant then attempts to enter the office himself. Another video from the office depicts PO Perez and PO Gonzalez looking into and behind the couch [BR 21]. At 12:03:14 a.m., PO Perez thoroughly searches the open table drawer. At 12:07:41 a.m., PO Gonzalez finds a cardboard box behind the couch and removes a clear white bottle from it. Two additional videos from Camera 05 show PO Hanlon and PO Palmerini entering behind the bar counter at 12:04:30 a.m. and 12:06:55 a.m., respectively [BR 17, 18].

Although Lt. Kaiser believed that officers were authorized to conduct a business inspection, he only mentioned that the officers could go behind the bar and potentially look into other locations depending on what was inside [BR 33]. He personally observed two bottles of alcohol located at the bar. Lt. Kaiser confirmed that he entered the office of the restaurant because he was alerted that bullets were found inside. He observed them in an open drawer of the desk. He stated that following that discovery, he spoke to § 87(2)(b) who granted consent to search for a gun, after which the officers conducted a search of the premises, although he did not recall who specifically did that or where they looked. However, he recalled that some liquor was seized from the area behind the bar.

In his verified phone statement to the CCRB, PO Hyde denied searching the restaurant or observing any officers do so [BR 30]. Upon reviewing video from Camera 05 located in the dining area, he confirmed he entered the bar because he was looking for guns and contraband in plain view. When he reviewed video from Camera 07 located in the office, he stated that he entered the desk drawer because he observed something in there but he did not specifically recall what. Although it was not visible in the video, the drawers were partially open and it was possible that he saw something that caught his attention in the drawer. He did not pick the object or objects up because he may have had another officer investigate that.

PO Perez stated that she initially looked for alcohol pursuant to a business inspection by looking at the kitchen and bar areas [BR 39].

PO Escudero maintained that he entered the restaurant after receiving consent to search for a gun from § 87(2)(b) [BR 36]. He looked behind the bar counter but did not recall if he opened any compartments there. PO Escudero confirmed he looked through the table drawer in the office because he observed bullets in there.

PO Gonzalez's justification for his actions described below was the same as PO Escudero's [BR 37]. He stated he searched all reachable areas for a firearm, specifically the couch, the desk, floor and walls. He did not recall if he opened any compartments in the desk and ultimately testified that he did not recall whether he observed the bullets himself or if someone gave them to him. He recalled observing a liquor bottle on the floor by the desk. Upon reviewing video from Camera 04, he explained that he looked into two fridges in the kitchen because he was looking in any place where a gun could be.

PO Palmerini's justification for the entry was mentioned earlier and he stated he just conducted a visual inspection of the restaurant and entered behind the bar counter [BR 38].

PO Hanlon testified that he entered the office because other officers had already been there and to check where the bullets were [BR 40]. He also entered behind the bar and might have opened some compartments there. PO Barbetto also confirmed he entered behind the bar counter although he did not recall if he opened any compartments there [BR 41].

§ 87(2)(a) 160.50

Property vouchers #§ 87(2)(b) prepared by PO Gonzalez list four cartridges, six photos and four bottle buckets being vouchered as arrest evidence [NYPD 03].

According to NYS Licensees Handbook, during operating business hours, all licensed premises are subject to inspection by law enforcement including the areas that are not normally open to public [BR 46]. Based on NYPD Patrol Guide Procedure 218-32, alcohol seized as a result of ABC violations must be photographed and delivered to the stationhouse [BR 47]. It may then be destroyed provided it was photographed on the scene of the violation.

§ 87(2)(g)

§ 87(2)(g)

Allegation (G) Abuse of Authority: On September 3, 2017, Police Officer Anthony Hyde searched § 87(2)(b) purse.

Allegation (H) Abuse of Authority: On September 3, 2017, Police Officer Matthew Escudero searched § 87(2)(b) purse.

Allegation (I) Abuse of Authority: On September 3, 2017, Police Officer Matthew Palmerini searched § 87(2)(b) purse.

Allegation (J) Abuse of Authority: On September 3, 2017, Police Officer Alejandra Perez searched § 87(2)(b) purse.

It is not disputed that multiple officers searched § 87(2)(b) purse located on the table in the office.

§ 87(2)(b) saw multiple officers search her purse via the surveillance cameras [BR 05]. She noted that she had two inch-by-inch bags with marijuana in her purse, each worth \$10. One officer later asked her if the marijuana was hers and issued her a summons for unlawful possession of marijuana. § 87(2)(g)

§ 87(2)(b) statement was consistent with § 87(2)(b) allegation however he noted that she had three bags of marijuana in it [BR 02].

Video recorded by Camera 07 located in the office depicts PO Hyde enter and shine his flashlight inside an open purse sitting on the table at 11:42:40 p.m. [BR 15]. He goes through the purse for a few seconds and leaves the office. At 11:45:05 p.m., PO Escudero leans into the office and reaches into the purse for a second while shining his flashlight into it. As discussed in the previous section, PO Escudero later comes back into the office and makes a motion that looks like he places something in the purse from the table drawer. In another video from this camera, recorded by the same camera, PO Escudero points his flashlight towards the table or the drawer [BR 20]. In a different video recorded by the same camera, at 12:02:52 a.m., PO Palmerini reaches into the purse, picks up a small plastic bag from it and places it back [BR 21]. At 12:02:58 a.m., PO Perez picks up the same bag, smells it and places it back. At 12:04:10 a.m., she starts taking various items out of the purse and conducts a more thorough search of it. At 12:08:32 a.m., PO Escudero enters the purse again and takes out a plastic card from it. He then conducts a more thorough search of the purse by taking out various items out of it.

As noted before, PO Hyde denied searching the interior of the restaurant until he reviewed the video evidence [BR 30]. He also stated he did not recall any marijuana being recovered. Upon reviewing the video, PO Hyde noted that he entered § 87(2)(b) purse because he observed marijuana paraphernalia in it, possibly a blunt wrap, and the purse was open. Therefore, he entered and searched it.

PO Escudero did not recall searching any purses either until he was shown the video recording [BR 36]. He initially stated he just slightly entered the already open purse on the table but did not recall the reason for his action. He later stated that he saw a clear Ziploc bag being visible from the purse. However, he did not recall where specifically he saw the bag in the purse. Upon opening the purse, he observed a bag with a green leafy substance. As mentioned earlier, he denied placing anything in the purse from the table drawer. PO Escudero explained that he conducted a more thorough search of the bag afterwards to determine who was its owner and also to see if there was a firearm inside.

PO Palmerini also did not recall searching a purse in the office until he reviewed the video [BR 38]. He did not recall what he picked up from the bag and whether it was marijuana He explained that he entered the bag to search for a gun.

PO Perez did not recall searching any bags inside the office but noted she might have felt some for a firearm [BR 39]. However, she later stated that there were some purses inside and one of them, either in the office or on the bar, had marijuana in plain view. She stated she probably looked inside the purse for a gun and additional marijuana. Upon reviewing the video from the office, PO Perez explained that she first took out a bag of marijuana from the purse, which was

visible and in plain view. She discovered more than two bags of marijuana in the purse and one from the wallet in it. She also checked a pill bottle in the purse for additional marijuana.

According to People v. Spinelli, 35 N.Y. 2d, 77, officers are not justified in conducting a “full-blown search” even after discovering products of a crime in plain view, which are allowed to be seized [BR 48]. In People v. Allen, 176 Misc. 2d 856, a defendant lawfully had an expectation of privacy in a closed cigarette container even after contraband was discovered in plain view and the defendant was arrested [BR 50]. Third party consent to search is only valid if it was granted by a person sharing common authority of an object. People v. Gonzalez 88 N.Y.2d 289 [BR 50].

§ 87(2)(g)

Allegation (K) Abuse of Authority: On September 3, 2017, Police Officer Alejandra Perez frisked § 87(2)(b)

It is undisputed that PO Perez frisked § 87(2)(b)

§ 87(2)(b) alleged that after the officers entered the restaurant, they instructed her and § 87(2)(b) to go to the kitchen [BR 06]. More than 45 minutes later, § 87(2)(b) and § 87(2)(b) were sent outside, and PO Perez patted § 87(2)(b) without saying anything or asking for permission. PO Perez instructed § 87(2)(b) to put her arms sideways and patted her sides. § 87(2)(b) did not object because PO Perez is an officer. PO Perez also patted over § 87(2)(b)'s chest and asked her if she had anything sharp in her bra. PO Perez patted down § 87(2)(b)'s legs and jeans pockets as well.

Neither § 87(2)(b) nor § 87(2)(b) made this allegation on behalf of § 87(2)(b) or indicated they observed it [BR 02, 05].

In his unverified phone statement to the CCRB, § 87(2)(b) stated that he, § 87(2)(b) and § 87(2)(b) were all searched while they were standing outside the restaurant [BR 11].

Video recorded by Camera 04 from the kitchen shows that following the officers' entry, § 87(2)(b) stepped into the kitchen from the dining room at 11:41:48 p.m. [BR 12]. She is wearing skinny jeans and a slim fitting white T-shirt. She stands leaning on the kitchen table with her back and holding her cell phone in her hands crossed in front of her legs. She eventually changes her position and stands leaning on the table with her elbows. While no knives are visible next to her, a pair of scissors is lying on the table a few inches to her right. At 11:47:56 p.m., PO Escudero comes out of the dining room together with PO Perez. He looks at § 87(2)(b) and puts his hands slightly sideways. At 11:48:04 p.m., § 87(2)(b) straightens up and stands facing PO Perez. PO Perez squeezes the middle area of § 87(2)(b)'s bra, pats her waistband and the back area of her upper legs.

When interviewed at the CCRB, PO Perez stated she did not recall any civilians being frisked or searched apart from the ones who were arrested [BR 39]. Upon reviewing the video, PO Perez stated she did not recall that happening but believed she patted § 87(2)(b) down for weapons. Another officer might have requested her to do this but she was not certain. PO Perez did not see anything that looked like a weapon on § 87(2)(b) and noted that § 87(2)(b) was just present in the kitchen when everyone was told to leave. The area was filled with knives and § 87(2)(b) could have taken one. PO Perez did not observe § 87(2)(b) make any movements towards the areas she was patted at. PO Perez added that she asked § 87(2)(b) “Do you mind, I just want to make sure you don’t have any weapons on you,” and § 87(2)(b) responded, “Fine,” without further objection.

None of the witness officers interviewed recalled or indicated that a civilian was frisked inside the restaurant [BR 30, 33, 36, 37, 38, 40, 41].

§ 87(2)(g)

Allegation (L) Abuse of Authority: On September 3, 2017, Police Officer Alejandra Perez searched § 87(2)(b) s purse.

Allegation (M) Abuse of Authority: On September 3, 2017, Police Officer Michael Barbetto searched § 87(2)(b) s purse.

Allegation (N) Abuse of Authority: On September 3, 2017, Police Officer Matthew Escudero searched § 87(2)(b) s purse.

Allegation (O) Abuse of Authority: On September 3, 2017, Police Officer Brian Hanlon searched § 87(2)(b) s backpack. PO Hanlon.

Allegation (P) Abuse of Authority: On September 3, 2017, Police Officer Matthew Palmerini searched § 87(2)(b) s purse.

Allegation (Q) Abuse of Authority: On September 3, 2017, Police Officer Matthew Palmerini searched § 87(2)(b) s backpack.

§ 87(2)(b) and § 87(2)(b) alleged that several officers searched § 87(2)(b) s purse that was sitting on the bar counter inside the restaurant [BR 02, 05].

Although § 87(2)(b) did not observe the search of her purse, she noted that when she got back to the dining area after standing in the kitchen, she observed that most of the contents of her purse were on the bar counter [BR 06].

Video recorded by Camera 11 located in the dining area shows PO Perez reaching into a large baggy purse sitting on the edge of the bar counter at 11:51:33 p.m. and looking through it for a few seconds [BR 24]. At 11:54:37 p.m., PO Barbetto also enters and looks through the purse. Another clip recorded by the same camera shows PO Escudero searching the same purse at 12:02:21 a.m. At 12:04:12 a.m., PO Hanlon picks up a bag or backpack from the floor behind the bar, unzip it and enter it [BR 25]. At 12:04:20 am, PO Palmerini enters the purse that was sitting on the bar counter and starts removing items from it. Video recorded by Camera 05 located over the bar depicts PO Palmerini going through an item that looks like a wallet or notepad that has been sitting on the bar at 12:06:19 a.m. [BR 18]. (Please note that these videos were not embedded due to the size limitation of the document).

PO Perez explained that she searched § 87(2)(b)'s purse because she saw a plastic bag with crumbs and flakes sticking out of it as well as smelled an odor of marijuana [BR 39]. Therefore, she searched the purse for marijuana and a gun. PO Perez did not recall how much marijuana was in the purse but believed it was not a lot because the officers did not even take it. PO Perez believed that this search occurred once the officers received consent from § 87(2)(b) to search the restaurant for a gun.

PO Barbetto also testified that he entered the restaurant following § 87(2)(b) consent to search it and acknowledged that he looked through a purse behind the bar for a firearm [BR 41]. He did not remove any items from it.

PO Escudero explained that he searched § 87(2)(b)'s purse for identification to determine its owner [BR 36]. He needed to know who the owner was because there was a purse sitting on the bar and to see if someone had left it behind. PO Escudero did not recall if he recovered anything from the bag or determined who its owner was. He noted that prior to that bullets were recovered on the premises. He later added he looked in the purse for a firearm as well.

PO Hanlon was consistent with PO Perez, PO Escudero and PO Perez in explaining reason for his entry inside the restaurant [BR 40]. He stated he looked into the backpack behind the bar probably for alcohol. He did not recall if the bag drew his attention for any reason or if someone had instructed him to search it. He did not recall finding anything inside.

PO Palmerini explained he looked into § 87(2)(b)'s purse for a gun and due to the consent to search [BR 38]. He added that he looked into the backpack behind the bar for the same reason.

Third party consent to search is only valid if it was granted by a person sharing common authority of an object. People v. Gonzalez, 88 N.Y. 2d 289 [BR 50]. In addition, a homeowner's consent to search does not necessarily extend to a closed container in the premises.

§ 87(2)(g)
[REDACTED]

Allegation (R) Abuse of Authority: On September 3, 2017, Police Officer Matthew Escudero frisked § 87(2)(b)

Allegation (S) Abuse of Authority: On September 3, 2017, Police Officer Matthew Escudero searched § 87(2)(b)

Allegation (T) Abuse of Authority: On September 3, 2017, Police Officer Matthew Escudero seized § 87(2)(b)'s property.

It is undisputed that PO Escudero frisked § 87(2)(b) and seized and searched his backpack. § 87(2)(g)

§ 87(2)(b) alleged that approximately 30 minutes after the officers' entry, an officer described as a Hispanic male, 5'4" tall, heavy set with a stomach, in his 30s, wearing plain clothes and hat, approached § 87(2)(b) and had a conversation with him [BR 02]. The officer took § 87(2)(b) backpack off his back and looked through it. He also patted § 87(2)(b) down and entered all his pockets. The officer removed money from § 87(2)(b)'s pockets and backpack handed it to PO Gonzalez together with the backpack.

§ 87(2)(b) view of § 87(2)(b) was obstructed and she only observed an officer take a backpack off him, remove something from it and hand it back to him [BR 05].

In his unverified phone statement, § 87(2)(b) stated he was pouring a drink to someone when an officer described as a white male, 6' tall, 250 pounds, in his early 30s, wearing brown pants, black shirt and a hat approached him and inquired what was going on [BR 09]. When § 87(2)(b) explained to him he was having a barbeque, the officer stated, "Let me go in your pocket." The officer entered his unspecified pocket, removed money from it and took his backpack off his back. § 87(2)(b) had different sums of money both in his pocket and the backpack (\$1600-2000 in total) since he had to pay the DJ and photographers. The officer walked away with § 87(2)(b)' backpack and another officer, described as a white male, 6'2" tall, 180 pounds, in his 30s, wearing a green shirt and brown pants, patted his pockets and waist and asked if he had any weapons. Sometime after, the first officer returned, gave § 87(2)(b) \$600 and explained he was keeping the rest because it was associated with the liquor he allegedly observed § 87(2)(b) sell.

PO Escudero acknowledged that he went to the bar area set up in the backyard and spoke to the bartender, identified by the investigation as § 87(2)(b) [BR 36]. § 87(2)(b) admitted he was selling alcohol for cash. Initially, PO Escudero stated when he was talking to § 87(2)(b) he observed two large bulges of different shape and size in his two front pockets. Although PO Escudero did not recall what § 87(2)(b) was wearing, he stated he possibly was wearing jeans. PO Escudero believed that the bulge in the right pocket could have been a baton or a pole due to its elongated circular size. § 87(2)(b) was also making movements underneath the bar and grabbed one of his pockets. PO Escudero walked around the bar, grabbed the bulge in the right pocket and asked what it was. § 87(2)(b) stated it was money, and PO Escudero inquired if he had any weapons on him, to which § 87(2)(b) replied no. PO Escudero asked § 87(2)(b) if he could check him for weapons, and § 87(2)(b) replied, "Absolutely." PO Escudero patted § 87(2)(b)'s entire waistband and chest area. At a later point in the interview, PO Escudero stated that § 87(2)(b) had a bulge only in one pocket, left or right, and he only frisked that pocket. PO Escudero did not recall entering any of § 87(2)(b)'s pockets. When behind the bar, PO Escudero noticed a box with cash in it and a backpack. PO Escudero asked § 87(2)(b) if they contained proceeds from the liquor sales, and he stated they did. Earlier during the surveillance, PO Escudero observed § 87(2)(b) pocket some money and asked if he had anything else. § 87(2)(b) replied he also had some money in his pocket and some of it was proceeds from the sales while some was personal. § 87(2)(b) gave PO Escudero the money himself and the bulge was gone from his pocket. PO Escudero placed the money into § 87(2)(b)'s backpack and took it together with the money. At some point, PO Escudero gave § 87(2)(b) the money he characterized as his and gave the backpack with rest of the cash to PO Gonzalez later at the stationhouse.

Lt. Kaiser did not recall if anyone was frisked or searched on the scene and believed that the backpack was seized and vouchered because it contained proceeds from the liquor sales [BR 33].

The rest of the officers either did not recall or observe the allegations made by § 87(2)(b) [BR 30, 38, 39, 40, and 41]. PO Gonzalez testified that he did not recall how he came into possession of the backpack and did not see the alleged misconduct [BR 37].

Property vouchers #§ 87(2)(b) and § 87(2)(b) prepared by PO Gonzalez list multiple photos as well as \$311 in cash vouchered as arrest evidence [NYPD 03].

According to NYPD Patrol Guide Procedure 208-26, property that serves as a means of committing, aiding or further a crime or are proceeds of a crime may be forfeited and should be properly vouchered [BR 51].

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Allegation (W) Abuse of Authority: On October 10, 2017, Lieutenant Matthew Johnson entered inside and the rear of § 87(2)(b) in the Bronx.

Allegation (X) Abuse of Authority: On October 10, 2017, Lieutenant Paul Gaglio entered inside and the rear of § 87(2)(b) in the Bronx.

Allegation (Y) Abuse of Authority: On October 10, 2017, Lieutenant Matthew Johnson searched § 87(2)(b) in the Bronx.

Allegation (Z) Abuse of Authority: On October 10, 2017, Lieutenant Paul Gaglio searched § 87(2)(b) in the Bronx.

It is undisputed that the officers entered private areas of § 87(2)(b) and its backyard and searched the location.

In her verified statement to the CCRB, § 87(2)(b) stated that on October 10, 2017, at approximately 8:30 p.m., when her restaurant was open for business, approximately 10 officers in plain clothes entered the establishment and informed her they were there to serve some papers [BR 27]. While § 87(2)(b) went to the kitchen to get her identification, multiple officers entered the kitchen and went to the backyard of the location through the back kitchen door. Some officers leaned into the office through an open door and some went to the bathroom. Some officers, including a lieutenant described as a white male, nearly 6' tall, in his 40s-50s, entered behind the bar counter and opened some compartments there. None of the officers asked for § 87(2)(b) permission prior to entering private areas of the restaurant. § 87(2)(b) had four bottles of wine stored behind a bar counter that was used for cooking. The lieutenant issued her a summons for unlicensed warehousing of alcohol and explained to her that it was supposed to be only stored in the kitchen. § 87(2)(b) was served an Order to Show cause § 87(2)(b) issued by New York State Supreme Court due to the violations of the Nuisance Abatement Law that had been occurring at the establishment [BR 28, BR 29, NYPD 27]. During the incident, § 87(2)(b) went to the bathroom, § 87(2)(g) and § 87(2)(b) was not present § 87(2)(g)

Although § 87(2)(b) provided an unverified phone statement in regards to this incident, he stated he observed the officers enter the restaurant through the cameras and left through the back door to avoid any interaction with them [BR 26].

Lt. Johnson explained that he is a nuisance abatement coordinator for the Bronx, therefore he was asked by attorneys from NYPD Legal Department to assist in serving nuisance abatement paperwork to the owners of § 87(2)(b) [BR 31]. Lt. Johnson was aware of the location's history of multiple parties and unlicensed sales of alcohol. He knew that the business applied for the liquor license in June of 2017 and was aware that since nuisance abatement procedures had been initiated against it, it would not have been in possession of the license on October 10, 2017. Lt. Johnson confirmed that upon entry he walked around the bar area along with officers of Bronx Vice. Initially, Lt. Johnson stated that he observed a bottle of beer in plain view, this was why he went there. He then stated he was not certain when he saw the beer and assumed that if he went behind the bar that must have been because he saw the beer. Lt. Johnson did not ask for § 87(2)(b) permission to go there. Lt. Johnson explained that officers were authorized to conduct a business inspection if an establishment applies for a liquor license or is issued one. Police are also allowed to go behind the bar to check for a certificate of occupancy and health code violations. While behind the bar, Lt. Johnson observed two or more liquor bottles in a cooler behind the glass doors. However, he did not recall if he opened the cooler or any compartments behind the bar. Lt. Johnson also confirmed that he and other officers entered the backyard of § 87(2)(b) through the kitchen of the restaurant also pursuant to the business inspection. He denied searching the kitchen or entering any other locations inside the restaurant. Lt. Johnson took photos of the alcohol he observed on premises [See photos BR 29].

Lt. Gaglio provided the same reason for arriving at the location but noted he and another officer from his command were just asked to assist during the incident and he was unaware of any history of the restaurant [BR 42]. Lt. Gaglio believed that when serving nuisance abatement paperwork signed by a judge, it was the officers' responsibility to ensure there was no alcohol on the premises and the actual serving of the documents was another chance for them and the NYPD Legal Department to see if there is alcohol on premises. If some is located, it would support the legal case built against the establishment. However, Lt. Gaglio was unaware of the status of § 87(2)(b) liquor license. Based on the above explanation, Lt. Gaglio and Lt. Johnson looked behind the bar counter, in the garbage cans, the bathroom and kitchen shelves for any evidence of alcohol. Although he did not recall specifically, he stated might have opened bar coolers as well. Lt. Gaglio confirmed that he also entered the backyard through the kitchen and that some alcohol was found behind the bar. Since Lt. Johnson and Lt. Gaglio were the highest ranking officers on scene, Allegations R, S, T, U are being pleaded against them.

§ 87(2)(a) 160.50

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been named as a victim only in the allegations made in this case. § 87(2)(g)
- § 87(2)(b) § 87(2)(b) has been party to one other CCRB complaint § 87(2)(b) [BR 54].
- This is a first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties [BR 54].
- Lt. Kaiser has been a member of service for 12 years and has been a subject in three other CCRB complaints and three allegations, none of which were substantiated. In case 201705367 an entry allegation pleaded against Lt. Kaiser is exonerated.
- PO Hyde has been a member of service for five years and has been a subject in three other CCRB complaints and six allegations, of which one was substantiated:
 - 201702786 involved a substantiated allegation of a frisk against PO Hyde. The board recommended Formalized Training and NYPD imposed the recommended penalty.
 - § 87(2)(g)
- PO Escudero has been a member of service for nine years and has been a subject in eight other CCRB complaints and 16 allegations, none of which were substantiated. In case 201405227 there is a frisk allegation pleaded against him that was unsubstantiated.

- PO Plamerini has been a member of service for 12 years and has been a subject in four other CCRB complaints and 10 allegations, none of which were substantiated.
 - 201014445 involves a search of person allegation that was closed as unsubstantiated.
 - 201505184 involves a search of person allegation that was closed as complainant uncooperative.
- PO Perez has been a member of service for four years and has been a subject in two other CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Hanlon has been a member of service for seven years and has been a subject in five other CCRB complaints and eight allegations, none of which were substantiated. § 87(4-b), § 87(2)(g)
- PO Barbetto has been a member of service for five years and has been a subject in two other CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Lt. Johnson has been a member of service for 12 years and this is the first CCRB complaint to which he has been a subject.
- Lt. Gaglio has been a member of service for 26 years and has been a subject in 10 other CCRB complaints and 18 allegations of which one was substantiated:
 - 201506103 involved a substantiated chokehold allegation against Lt. Gaglio. The Board recommended Charges and the NYPD has yet to impose the penalty.
 - Cases 200306856, 200808396, and 201409734 contain premises entered and/or searched allegations against Lt. Gaglio that were exonerated.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 21, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint [BR 53].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 8

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date